VIRGINIA IT AGENCY

COMMONWEALTH OF VIRGINIA

Enterprise Architecture (EA)

Information Technology Resource Management (ITRM)

Security Standard for Remote Access to Court Documents Online



ITRM Standard (SEC 503-03)
2025

PUBLICATION VERSION CONTROL

Publication Version Control: It is the user's responsibility to ensure they have the latest version of this ITRM publication. Questions should be directed to VITA's Director, Security Governance, within Commonwealth Security and Risk Management (CSRM). Changes to this Standard will be posted on the Virginia Regulatory Townhall, at: https://townhall.virginia.gov/L/GDocs.cfm?BoardID=165.

Version	Date	Purpose of Revision
Original	11/07/2003	Base Document
Revision 1	12/17/2003	Removed the notion of "purpose" from the document by eliminating language that mentions "business use."
Revision 2	03/28/2005	Update the Standard to comply with statutory changes, including to Virginia Code § 2.2-3808.2 regarding the certifying entity for secure remote access to documents on court-controlled websites, Virginia Code § 17.1- 279 concerning circuit court clerks certifying their compliance with security standards developed by VITA, and a modification to the definition of "Subscriber" to include "Corporate Subscriber."
Revision 2.1	12/08/2016	Administrative update. No substantive changes were made to this document.
Revision 2.2	6/21/2017	Administrative update. No substantive changes were made to this document.
Revision 3	See Virginia Regulatory Town Hall. Approximately 03/2025	Administrative update. Moving into the guidance document process.

PREFACE
Publication Designation
ITRM Standard SEC503: Security Standard for Remote Access to Court Documents Online

Subject
Security standard for remote access to documents on court controlled websites

Effective Date
See Virginia Regulatory Town Hall. Approximately 03/2025

Supersedes
All prior versions of COV ITRM Standard SEC503

Scheduled Review
Will be performed as required

Authority and Related Code Sections

Code of Virginia §17.1-279
(Additional fee to be assessed by circuit court clerks for information technology)

Code of Virginia §17.1-292
(Applicability; definitions)

Code of Virginia §17.1-293
(Posting and availability of certain information on the Internet; prohibitions)

Code of Virginia §17.1-294
(Secure remote access to land records)

Code of Virginia §2.2-3803

(Administration of systems including personal information; Internet privacy policy; exceptions)

Code of Virginia §17.1-227
(Documents to be recorded in deed books; social security numbers)

Code of Virginia § 20-121.03
(Identifying information confidential; separate addendum)

Scope

Pursuant to Code of Virginia, §17.1-279, circuit court clerks' offices or application service providers will provide secure remote access to land records via paid subscription service. Such access will comply with security standards developed by VITA, pursuant to §17.1- 294.

Objectives

To set forth the components for a security standard to govern subscribers' access to court documents on court controlled websites.

General Responsibilities

Virginia Information Technologies Agency (VITA)
VITA is responsible for developing standards for the security of remote access to documents on court controlled websites, in consultation with the circuit court clerks, the Office of the Executive Secretary of the Supreme Court, the Compensation Board, and other stakeholders.

Court Clerks
Responsible for complying with ITRM Standard SEC503.

Related COV ITRM Policies, Standards and Guidelines

ITRM Standard SEC530_(Information_Security_Standard) (virginia.gov)
Information Systems Facilities Security Guideline SEC517

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1. INTRODUCTION

1.1 Authority

This standard pertains only to the access to documents posted on court-controlled websites through the use of the Internet.

1.2 Approach

This standard is consistent with the provisions of COV ITRM Standard SEC530: Information Technology Security Standard (SEC530).

The standard consists of the following:

- Establish a Precondition for Access to a Network or System
- The Restricted Access Requirements
- Secure Website Certification

These components provide a framework to restrict remote access to all documents on court-controlled websites. For each component listed above a subset of standards has been identified that comprises this standard.

1.3 Reviews

A full review of this standard will be performed when requested or required by law.

1.4 Definitions

"Public access" means that the public can inspect and obtain a copy of the information in a court record.

"Remote access" means that inspection can be made without the need to physically visit the courthouse where the court record is maintained.

"Subscriber" means any person authorized by the Clerk of a Circuit Court to have remote access to court documents on its website. If a business or non-profit entity, organization or association (referred to collectively as "Corporate Subscriber") wishes to become a subscriber, it shall identify each individual employee who will have remote access to the documents on the circuit court-controlled website and each individual employee shall obtain a User ID and Password from the clerk. However, the Corporate Subscriber shall execute the Subscriber Agreement and be responsible to the circuit court for the fees and the proper use of the website pursuant to the Subscriber Agreement.

"Court Controlled Website for Documents" means a website or remote access system owned and operated by the Court or a public or private agent that operates the website for the Court.

REQUIREMENTS FOR RESTRICTED REMOTE ACCESS TO DOCUMENTS ON COURT-CONTROLLED WEBSITES

This section sets forth the specifications for the Security Standard for Restricted Remote Access to Documents on Court- Controlled Websites pursuant to § 17.1-294 of the *Code of Virginia*.

1.5 Establish a Precondition for Access to a Network or System

As a precondition and a safeguard, the Subscriber shall complete an application for Internet access to court-controlled documents. The application form (an example of which is in Appendix A) consists of basic identification information, including the prospective Subscriber's identity, business or residence address, and citizenship status.

2.1.1 To register a prospective Subscriber shall provide the following information:

- Last Name
- First Name
- Business Name (if applicable)
- Street Address
- City/State/Zip Code
- Phone Number
- Email Address
- Citizenship Status
- Signature

2.1.2 Registration must be in person or by means of a notarized or otherwise sworn application that establishes the prospective Subscriber's identity, business or residence address, and citizenship status.

2.1.3 By signing the Application (See: Appendix A, Example Application), the Subscriber acknowledges and accepts the terms and conditions of the *Subscription Agreement for Internet Access to Circuit Court Documents* (see: Appendix B, Example Subscriber Agreement).

1.6 Restricted Access Requirements

Remote access to any document posted on a court-controlled website is restricted to pre-registered Subscribers.

2.2.1 Pursuant to § 17.1-294 of the *Code of Virginia*, an application must be completed and approved by the Clerk of the Circuit Court from which the Subscriber wishes to inspect and obtain a remote copy of information via the Circuit Court website. This requirement applies to all individuals accessing documents on court-controlled websites regardless of whether they were a user of this service prior to the effective date of this standard. An example Application is in Appendix A.

2.2.2 The pre-registered Subscriber must comply with the terms of the *Subscription Agreement for Internet Access to Circuit Court Documents,* referred to as "Agreement." An example Agreement is in Appendix B.

1.7 Secure Website Certification

Pursuant to §17.1-294 and §17.1-279 of the *Code of Virginia*, VITA is responsible to develop security standards for secure remote access to any document posted on a court controlled website; and the individual circuit court clerks or their vendor/service provider on their behalf shall certify compliance to the Compensation Board (herein after referred to as "the Board") with such security standard.

2.3.1 No Clerk shall post on a court-controlled website any document that is restricted, pursuant to §17.1-294 or §2.2-3808.2 of the *Code of Virginia*, without first certifying to VITA and the Board that its court-controlled website is secure and provides for restricted access.

2.3.2 To certify and to retain certification as secure for restricted remote access, pursuant to § 17.1-279 of the *Code of Virginia*, a court-controlled website shall comply with both this security standard and SEC530. Regarding SEC530, the following sections are mandatory: (A.) Business Analysis and Risk Assessment; (E.) Authentication, Authorization and Encryption; (F.) Data Security; (G.) Systems Interoperability Security; (H.) Physical Security; (I.) Personnel Security; and (J.) Threat Detection. The other sections of SEC530 are highly recommended as best practices.

A complete risk assessment is appropriate the earlier of (i) every five years measured from the date of the last complete risk assessment, (ii) whenever a change occurs in the physical plant of the court facilities that affects security, or (iii) a change occurs in the technological systems utilized by the court that affects security. When a change in either physical plant or technological systems occurs, the clerk should provide a certification that either (a) the level of risk has not changed, or (b) if the level of risk changed, that a supplemental risk assessment has been provided. The clerk may base his/her certification upon the representation of any vendor that any change in the physical or technology system should not compromise system security. However, no additional risk assessment is appropriate if the changes to the physical plant or the technological systems are implementations of a previous risk assessment.

2.3.3 A Clerk shall self-certify, or cause to be self-certified by their vendor/service provider on their behalf, a court-controlled website by one of the following methods:

(i) Self-certified to the Board via its automated web system during the annual Technology Trust Fund budget cycle.

(ii) Complete and return the Self-Certification form (see: Appendix C) to the Board.

The Board shall confirm receipt to the Clerk by email within five (5) business days after receipt of the Self-Certification form.

2.3.4 All Clerks shall maintain a record of each Subscriber application received, regardless of whether the application was approved or not, as well as a record of all remote access permitted to court-controlled documents on its website. Commercial software is available, for web servers that do not have a built-in monitoring and surveillance capability, to keep electronic logs of transactions.

2.3.4 VITA or the Clerk's auditor may inspect the records pertaining to remote access and audit compliance with this standard and SEC530 of certified court- controlled websites, upon reasonable prior written notice to the Clerk.

2.3.5 If a court-controlled website is not in compliance with this standard, the Clerk shall be immediately informed by email to discontinue all public access to the website until it can re-certify to be in compliance.

2. APPENDICES

2.1 Appendix A: Example Application

(may be varied by the Clerk as necessary/appropriate)

APPLICATION FOR INTERNET ACCESS TO RECORDS MANAGEMENT SYSTEM

The approval of this application is at the Clerk of the Circuit Court's discretion. By signing this application the Subscriber acknowledges and accepts the terms and conditions of the *Subscriber Agreement for Internet Access to Circuit Court Documents*.

SUBSCRIBER:
CORPORATE NAME: _____

INDIVIDUAL'S LAST NAME: _____

INDIVIDUAL'S FIRST NAME:_____

BUSINESS NAME (if applicable) _____

STREET ADDRESS _____
CITY/STATE/ZIP _____
PHONE NUMBER _____
EMAIL ADDRESS _____

UNITED STATES CITIZEN Y N (*Please circle one*)

SIGNATURE _____

I certify that the information above is true and correct.

I,_____, a Notary Public, do hereby certify that on this ___ day of _____, 20___ , _____ personally appeared before me and swore and acknowledged to me that the statements contained therein are true and correct.
Notary Public, County of _____
Name (Typed or Printed):_____
My Commission Expires: _____
Notary Phone Number: _____

For use by Circuit Court Clerk's Office only
SUBSCRIBER ID _____
PASSWORD _____
EXPIRATION DATE _____

2.2 Appendix B: Example Subscriber Agreement

(may be varied by the Clerk as necessary/appropriate)

SUBSCRIBER AGREEMENT FOR INTERNET ACCESS TO CIRCUIT COURT DOCUMENTS

1. TERM OF AGREEMENT

It is the intent of both parties to participate in a remote access program to commence on the day the User ID and Password are assigned and continue until terminated as provided herein.

2. SUBSCRIBER OPTIONS

The Clerk provides an on-line database allowing "inquiry-only" access to the particular court's indices and/or documents.

3. DAYS AND HOURS OF OPERATION

The Internet access to the Circuit Court documents may be available seven days a week, twenty-four hours a day, including all holidays, or otherwise at the discretion of the Clerk, except during periods:

a. Of preventative and remedial maintenance
b. Of operational issues beyond the control of the Clerk
c. When intrusions against security are being remedied

4. FEES

The fee for the Subscriber is $__per_; and the transactional fee is $_per transaction. Fees are charged at the discretion of the Clerk. If a fee is charged, payment is due upon the issuance of the User ID and Password. The transactional fee is due upon receipt. The Clerk reserves the right to suspend or terminate service to the Subscriber if payment is not received. All fees are subject to change.

5. SERVICES

The Clerk, deputies, employees or agents shall provide the Subscriber with "inquiry-only" access to the documents management system database (the Database).

The Clerk, deputies, employees or agents shall provide the Subscriber with documentation and limited consultation on specific problems that arise in the use of the website. The Clerk does not guarantee consultation results nor warrant or represent that all errors or problems shall be corrected.

6. SUBSCRIBER'S OBLIGATIONS

It is the responsibility of the Subscriber to purchase computer hardware and software and/or make modifications to their existing equipment that are necessary for access to the Database.

The Subscriber is responsible for ensuring that unauthorized personnel do not use the Subscriber's computer. Information accessed from the Database is for the use of the Subscriber.

7. LIMITATION OF LIABILITY

The Subscriber relieves and releases the Clerk, deputies, employees or agents from liability for any and all damages resulting from interrupted service of any kind. The Subscriber further relieves and releases the City/County of_____, its Board of Supervisors, officers and their deputies, employees and agents from liability for any and all damages resulting from interrupted service of any kind. The Subscriber also relieves and releases the Office of the Executive Secretary, Supreme Court of Virginia, employees and agents from liability for any and all damages resulting from interrupted service of any kind.

The Subscriber hereby relieves and releases and holds harmless the Clerk, the City/County of _____, its Board of Supervisors, officers and their deputies, employees or agents of any liability for any and all damage resulting from incorrect data or any other misinformation accessed from this service. The Subscriber also relieves and releases the Office of the Executive Secretary, Supreme Court of Virginia, employees and agents from liability for any and all damages resulting from incorrect data or any other misinformation accessed from this service.

The Subscriber agrees that the Clerk, the City/County of_____, its Board of Supervisors, officers and their deputies, employees or agents shall not be liable for negligence or lost profits resulting from any claim or demand against the subscriber by any other party. The Subscriber also relieves and releases the Office of the Executive Secretary, Supreme Court of Virginia, employees and agents from liability for any and all damages resulting from any claim or demand against the subscriber by any other party.

The information or data accessed by the Subscriber may or may not be the official government record required by law. In order to assure the accuracy of the data or information, the Subscriber should consult the official governmental record.

8. TERMINATION

Either party may terminate this agreement without cause with fifteen (15) days email notice to the other. Subscriber remains responsible for payment of fees, pro rata, for services rendered or obligations incurred.

This agreement may be immediately terminated by the Clerk for Subscriber's failure to provide correct or complete information on the application, failure to comply with the terms of this agreement, failure to make payments of fees or breach of agreement.

This agreement shall terminate immediately if the Commonwealth of Virginia or City/County of _____fail to appropriate and continue funding for services provided under this agreement.

9. DEFINITIONS

i. "Public access" means that the public can inspect and obtain a copy of the information in a court record.

ii. "Remote access" means that inspection can be made without the need to physically visit the courthouse where the court record is maintained.

iii. "Subscriber" means any person authorized by the Clerk of a Circuit Court to have remote access to court documents on its website. If a business or non- profit entity, organization or association (referred to collectively as "Corporate Subscriber") wishes to become a subscriber, it shall identify each employee who will have remote access to the documents on the circuit court-controlled website and each employee shall obtain a User ID and Password from the clerk. However, the Corporate Subscriber shall execute the Subscriber Agreement and be responsible to the circuit court for the fees and the proper use of the website pursuant to the Subscriber Agreement.

iv. "Court Controlled Website for Documents" means a website or remote access system owned and operated by the Court or a public or private agent that operates the website for the Court.

10. APPLICATION

Pursuant to *§17.1-294* of the *Code of Virginia*, an application must be completed. The application must be approved by the Clerk's office before the User ID and Password can be issued.

2.3 Appendix C: Self-Certification

(Vendor/Service Provider on behalf of a Circuit Court Clerk)

CIRCUIT COURT-CONTROLLED WEBSITE SELF-CERTIFICATION

Chief Information Officer
Virginia Information Technologies Agency
7325 Beaufont Springs Drive
Richmond, VA 23225

TO: Executive Secretary
Compensation Board
P.O. Box 710
Richmond, VA 23218-0710

FROM: Clerk of the Circuit Court of City/County

RE: Certification of Circuit Court-Controlled Website

I, **(Full Name of Clerk**), Circuit Court Clerk, Court of_____City/County certify that, as of this date and to the best of my knowledge, information, and belief, this Court's website and supporting computer network or system:

1. Restricts remote access to court-controlled documents posted on it that contain the following information: (i) an actual signature; (ii) a social security number; (iii) a date of birth identified with a particular person; (iv) the maiden name of a person's parent so as to be identified with a particular person; (v) any financial account number or numbers; or (vi) the name and age of any minor child – to only those Subscribers approved by myself or my designee.

2. Is consistent with §17.1-293 of the *Code of Virginia* (Posting *and availability of* certain information on the Internet; prohibitions).

In compliance with the following mandatory provisions of *ITRM Standard SEC 530: Information Security Standard*: **(**A.) Business Analysis and Risk Assessment; (E.) Authentication, Authorization and Encryption; (F.) Data Security; (G.) Systems Interoperability Security: (H.) Physical Security: (I.) Personnel Security; and (J.) Threat Detection.

3. In compliance with the provisions of ITRM Standard SEC503: Security Standard for Restricted Remote Access to Documents on Court-Controlled Websites.

_____ _____
Signature of the Clerk of the Circuit Court Date

Print Name _____
Clerk of the Circuit Court, _____City/County